

The Breaking Wave

A conversation about reforming
the oceans management system
in Aotearoa New Zealand

WORKING PAPER

Greg Severinsen, Raewyn Peart
and Bella Rollinson

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ABBREVIATIONS

ACE	Annual catch entitlement
EDS	Environmental Defence Society
EEZ	Exclusive economic zone
EEZ Act	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act
EPA	Environmental Protection Authority
Fisheries NZ	Fisheries New Zealand
MACA Act	Marine and Coastal Area (Takutai Moana) Act
NBA	Natural and Built Environments Act
NES	National Environmental Standard
NZCPS	New Zealand Coastal Policy Statement
QMS	Quota management system
RMA	Resource Management Act
TAC	Total allowable catch
TACC	Total allowable commercial catch
Te Tiriti	Treaty of Waitangi/Te Tiriti o Waitangi



Introduction

Koheru (*Tanya Peart*)

Aotearoa New Zealand is an island nation with jurisdiction over a very large and valuable marine domain. But this important space is at the centre of many conflicting uses, serious environmental degradation and threats of species extinctions. The country's current legal and institutional framework is failing to address these issues. Importantly, it has no overarching mechanism to help ensure that all legislation relevant to the marine environment is interacting coherently or producing optimal economic, social, cultural and environmental outcomes.

Our oceans are not a world apart. Although for many of us they may be out of sight, we cannot afford for them to be out of mind. The time has come to reflect on how our oceans management system works as a whole, and indications are that the government is also seeing oceans reform as important.

The Environmental Defence Society (EDS) oceans project is about conceptualising Aotearoa New Zealand's oceans management system and thinking about blue skies options for change. In doing so, it is building on previous work on marine issues and EDS's recent multi-phase resource management system reform project.¹

In taking a first principles approach, the project is seeking to frame a conversation about the future of the oceans management system as an integrated whole. By "first principles", we generally mean that we are asking fundamental, future-focused questions about how our overall package of laws, institutions and interventions should and can work. We are not just reacting to particular problems or looking at better ways to do the same things. We are asking why we do certain things, whether we should be doing them, and how we should be doing things in a future that will be quite different from the present.

We are also considering how the government's wider reform programme might affect the oceans space. However, we note that the ideas presented in the project may not necessarily be within the scope of reform initiatives currently underway or planned by the government. The *kōrero* is broader than that.

In essence, the "oceans management system" is about the formal means by which public authorities manage

people's interactions with *te moana* (the ocean). Yet while it has its eyes fixed on the marine space, its peripheral vision needs to scan threats and opportunities beyond them, including on land. One cannot be thought about without considering the other.

This system is a broad concept, but not one that is defined in legislation. It includes all the laws, institutions, incentives and norms that collectively manage or influence outcomes in our seas. This encompasses *tikanga Māori* (rules, protocols, practices and norms), *te ao Māori* (the Māori world view), *mātauranga Māori* (Māori knowledge), and *te Tiriti o Waitangi* (te Tiriti).

With the possible exception of the late 1980s, 2021 can arguably be seen as an unprecedented hive of policy activity and creative thinking. Environmental awareness is growing, and Covid-19 has caused an important moment of reflection about our society and what it means to be a New Zealander. Thus we need to think positively – the system is a tool for building our relationship with *te moana*, not just to reign in the more destructive tendencies of humanity.

What opportunities are out there? What do we want our marine future to be, keeping in mind it is likely to be quite different to the present? What values do we want it to reflect in our unique cultural context? We have an opportunity to think about creating something new, meaningful and reflective of who we are as a people and a country, not just to address problems in a piecemeal way.

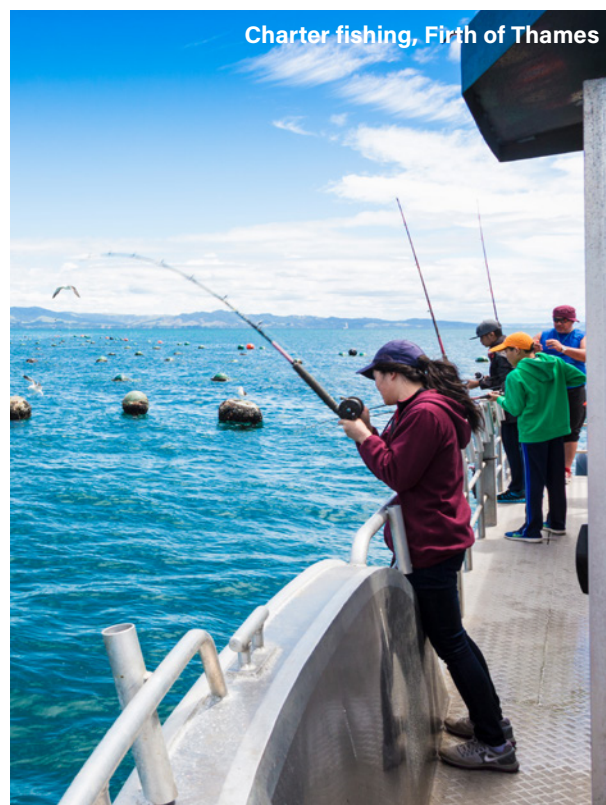
Structure of the project

In short, we are structuring the project according to three substantive parts (see Figure 1 below). Part 1 is about describing what we have now. This includes looking at our marine environment (defining and describing our oceans biological makeup and functions, biophysical problems and human interaction and impacts); the existing oceans management system (how our laws are configured and problems with the system); and the context in which reform to the system would occur (resource management, fisheries and various other reforms currently in train).

Part 2 of the project is about looking at options for reforming the system. This tackles four interrelated

“themes” that are intentionally designed to cut across existing legislation, institutions and principles: (1) norms (ethics, worldview and principles), (2) tools (ie interventions, such as plans, permits and economic instruments, as well as ways to make better connections between different parts of the system), (3) structures (legislation and institutions), and (4) networks (various things, like money and information, that flow through the system).

Part 3 of the project – which we will include in a final report due for release in early 2022 – is about drawing the various reform options together and presenting three or four overall alternative models for what a future oceans management system could look like. This will consider how various options for change (from utilising existing tools better, to reshuffling legislative or institutional boundaries) could work together in different ways. We also intend to provide some comment on the prospect of deeper societal change and how ocean reforms could be progressed in practice over the coming years. It would not have to happen all at once, and a coherent plan will be needed to smooth the path to change (whatever that may look like).



Chapter 1	Introduction	Te ao Māori ² and te Tiriti o Waitangi ³	Opportunities from resource management reform process
Part 1: What we have now			
Chapter 2	Our marine environment		
Chapter 3	Our existing marine management system		
Chapter 4	The context in which reforms would take place		
Chapter 5	The requirements of international law		
Part 2: Options for change			
Chapter 6	Norms: Rationale for the system, ethics, principles and objectives		
Chapter 7	Reconsidering the toolkit		
Chapter 8	Improving connections within the system		
Chapter 9	Legislative design		
Chapter 10	Institutional design		
Chapter 11	Networks: Information, participation, money and evaluation		
Part 3: Drawing the threads together			
Chapter 12	Three models for a future system		
Chapter 13	Deeper societal change		
Chapter 14	The process of reform		

Figure 1: Structure of the EDS oceans reform project, reflecting indicative chapters in the final report

Integrated across the project are two cross-cutting matters. First, we stress that te ao Māori and tikanga Māori are not just “subjects” of the oceans management system to be protected within it. They also need to guide what the system looks like and the design choices made across all themes. Furthermore, and although it extends well beyond the marine context, obligations under te Tiriti (including, but not limited to, ongoing settlement processes) form part of the backdrop for reform.

Secondly, there is considerable overlap between the government’s current resource management reform programme⁴ and future oceans reform. The current reform process provides opportunities for oceans reform to “piggyback” on, and further influence, measures already in progress. However, it may also provide a practical constraint on how far marine reforms can go, as key policy decisions have already been taken about high-level legislative and institutional design choices.

We emphasise, however, that planned resource management reform does not obviate the need for wider ranging oceans reform. For instance, there are spatial limitations to the current resource management reform process – it doesn’t include anything beyond the territorial sea. There are also important sectoral exclusions (especially fishing), and its normative foundations are focused on land rather than sea. To this end, we note the government’s interest in pursuing holistic oceans reform more directly. Since the 2020 election and creation of a new ministerial portfolio for Oceans and Fisheries, indications are that oceans reform is being seen by the government as significant. While the extent of appetite

for reform remains unclear, there have been strong indications in a series of recent Cabinet papers that significant fisheries-focused reform is planned.⁵

Furthermore, there has been a signal that this will take place within a broader “vision” for the oceans founded on ecosystem-based management. Although it remains to be seen what this vision might comprise and how far it could go, longer-term and deeper reform measures are also canvassed as a possibility, with EDS’s current project mentioned as an input.

The working paper

Within the broader context of EDS’s oceans reform project described above, the purpose of this working paper is more constrained in scope and depth than our final report will be. This paper aims to showcase key aspects of our thinking so far, and to prompt discussion. It poses questions throughout (in green boxes), and we welcome feedback on these as well as on ideas raised and areas warranting further exploration.⁶

Appendices (contained in a separate document) provide further background and context to ideas explored in the paper, including a description of the current oceans management system (Appendix 2) and international approaches to oceans management and governance (Appendix 4). This executive summary highlights key ideas from the working paper; we recommend that readers turn to the full working paper (and appendices) to explore ideas of interest in more depth.





Mokohinau Islands (*Tanya Peart*)

Te moana/ the marine environment

Pāteke, Aotea/Great Barrier Island

As an island nation, the sea is never far away in Aotearoa New Zealand; it connects us to the rest of the world. Most of our population is not far from the sound of the waves, and we are shaped both directly and indirectly by its presence.

In Chapter 2 of the working paper we look at defining, describing and diagnosing problems in the marine environment. That requires some thought to be given to what the marine environment is.

From a purely geographical perspective, the oceans include the territorial sea/coastal marine area within 12 nautical miles from land, the exclusive economic zone (EEZ) 200 nautical miles out to sea, and the extended continental shelf. The impacts from the land and atmosphere on this marine environment are important too. However, to many, this technocratic definition may miss what the oceans truly *are*. Our definition of our marine environment is inextricably bound up with how we, as people, perceive and value it.

People use and value the sea for a variety of reasons. Uses, both commercial and non-commercial, can cause conflicts in the marine environment. Conflict can also arise over values: instrumental perspectives of the ocean can clash with ideas of intrinsic value. For Māori, the value of the moana lies in whakapapa (kinship) and whanaungatanga (relationship, kinship, sense of family connection) – it is not just a resource to be used, but rather an ancestor to be treasured and looked after. Many areas are defined, not just by their topography and ecosystems, but by their significance to people. Particular places hold deep emotional and spiritual connections in te ao Māori as well as other worldviews.

Humans are not the only species to use and value the oceans. We have an astonishing diversity of marine life in Aotearoa New Zealand. Species exist in complex relationships and make their homes in environments as diverse as reefs, estuaries and hydrothermal vents. We describe the marine environment in Appendix 1. But our oceans are changing, and a lot of that is down to human activities and pressures. In particular, a number of species are declining, threatened or endangered, and ecosystems are facing significant threats. We are faced with the prospect of extinctions and ecological tipping points, with flow on effects for human health and wellbeing. The casual observer should not be fooled by looking out to sea

and seeing a big, blue, unbroken sheet. It is good at hiding what can be quite fundamental shifts from human eyes. Fell a forest, and we see it straight away; destroy a coral garden on the seabed, and it can be overlooked.

In Chapter 2 we canvas the significant problems our oceans face and factors that contribute to these problems, including fishing, invasive species, plastics, sediment, nutrients, chemical pollution, coastal development, climate change and cumulative impacts. It is not surprising that our marine ecosystems are under increasing stress. If anything, the most remarkable thing is that many have stayed as resilient as they have. But there is no guarantee they will remain so in the future.

For some things, damage may have started a long time ago and legacy effects are inevitable now and in the future. For example, it can take a long time for pollutants to travel down a catchment. In addition, some effects of climate change now seem inevitable. We will need to play a long game in resolving such things, and measure our success accordingly. But this also serves to remind New Zealanders that what we allow to happen now will have impacts that reverberate across years to come. Future generations will experience the impacts of a decision now to clearfell forests, overstock dairy land, or allow novel chemicals and plastics to disperse into the marine area.

Our oceans management system needs to be well positioned to tackle existing problems as well as to prevent future ones from arising. It also needs to be oriented towards making active improvements, not just preventing harm.

Sandager's wrasse (*Tanya Peart*)





Danish seining, Hauraki Gulf

Coxs Bay, Auckland

The existing oceans management system

The existing system should not be the *conceptual* starting point for change. We do not want our options and analysis in a first principles approach constrained by existing ways of thinking, or to consist of tinkering with existing frameworks or silos. Some options may be radical, and involve upending assumptions underpinning the current system. The scale of the problems we face means it is legitimate to at least contemplate revolution, not evolution.

However, we still need to understand where we are now, so we can see where we might need to go and how we might get there. Chapter 3 (and Appendix 2) therefore summarises our complex oceans management system (see Figure 2 below, which identifies core statutes), outlines recent and ongoing reforms, and identifies things that are going wrong.

The existing system comprises much more than just our statute book (which has dozens of separate acts as shown in Figure 2 below). It also includes thousands of tools – from national direction and regional coastal plans, to catch limits and the quota management system (QMS), to product stewardship schemes and waste levies, to mining permits and resource consents – and the institutions and processes that develop and use them. Because the system is so vast, we look at issues by themes – categories of systemic problems that arise across multiple frameworks – rather than identifying every single complaint about every statute or institution. This approach inevitably makes the problem definition incomplete, but it is important in systemic reform not to lose the forest for the trees. More specific issues will no doubt need to be addressed through any reform process.

Tikanga Māori is also a system of oceans management in its own right, and it intersects with a largely Western system of legislation, institutions and formal tools. While it is the latter that we are seeking to reform (and not tikanga itself), part of that involves thinking about where these systems intersect and how tikanga can inform the formal system.

We highlight three key, overarching issues with the current system. First, it has failed to achieve many of the outcomes that it was always intended, and expected, to achieve (notably ones related to environmental protection).⁷ This is its most significant problem. Secondly, the existing system was not really designed to achieve some outcomes that it may now be expected to achieve in a modern context (eg a stronger approach to distributional

equity – how value is apportioned – within market-based tools). Thirdly, the way that the system has evolved over time means it has gradually become less coherent and more complex, and much harder for people to navigate. More specifically, in Chapter 3 we identify and explore the following issues:

- Weak environmental limits
- Outdated norms and values
- Fragmentation, gaps and overlaps
- Complexity and inaccessibility
- Lack of stewardship and leadership
- Lack of strategy and agility
- Issues with procedural fairness
- Problems with information and funding
- The need to comply with international law.

We also review the context of reform, including the multiple reviews, policy work and programmes of relevance to the ocean being undertaken by government. Of most significance are the reforms to the resource management system and the government's recent announcements in relation to the Oceans and Fisheries portfolio.



Family of statutes	Statute	Spatial application		
		Land/ fresh-water	Territorial sea	EEZ and extended continental shelf
Resource management	Resource Management Act 1991			
	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012			
Fisheries	Fisheries Act 1996			
	Treaty of Waitangi (Fisheries Claims) Settlement Act 1992			
	Māori Commercial Aquaculture Claims Settlement Act 2004			
	Māori Fisheries Act 2004			
	Fisheries (Quota Operations Validation) Act 1997			
Shipping	Maritime Transport Act 1994			
Biosecurity	Biosecurity Act 1993			
Conservation	Conservation Act 1987			
	Marine Reserves Act 1971			
	Wildlife Act 1953			
	Marine Mammals Protection Act 1978			
	Hauraki Gulf Marine Park Act 2000	(islands and catchments)	(specific area)	
	Fiordland (Te Moana o Atawhenua) Marine Management Act 2005		(specific area)	
	Sugar Loaf Islands Marine Protected Area Act 1991		(specific area)	
	Kaikōura (Te Tai o Marokura) Marine Management Act 2014		(specific area)	
Climate change	Climate Change Response Act 2002			
Mining	Crown Minerals Act 1991			
	Continental Shelf Act 1964			
Other	Heritage New Zealand Pouhere Taonga Act 2014			
	Marine and Coastal Area (Takutai Moana) Act 2011			
	Submarine Cables and Pipelines Protection Act 1996			

Figure 2: Key statutes that form the core of the current oceans management system, and their spatial application

Hector's dolphins, Akaroa Harbour

Norms

The focus of chapters 2 and 3 of the paper is problems and challenges. However, the way we think about problems, or diagnose problems at all, is intimately linked to our values. What is problematic for one person may not be problematic at all for another. And even if there is an agreement that something is a problem, the way it is expressed (eg in terms of biophysical, social or metaphysical dimensions) can be different depending on one's values.

Some outcomes or system features are obviously "problematic" no matter one's worldview – such as the collapse of marine habitats or inconsistencies in the norms underpinning our statutes. Yet even where there is a high degree of consensus, it is worth interrogating *why* we think such things are bad, because different worldviews might give different answers (and therefore different solutions). We explore these kinds of normative questions in Chapter 4.

- Is it possible to have a purely objective assessment of problems?
- Which of the problems identified in chapters 2 and 3 are there likely to be consensus about?

First, Chapter 4 outlines a structure for thinking about the normative discussion that will drive oceans management reform, and which we will build upon in our final report. It tests some ideas and assumptions about worldviews and what they might mean for tangible reform options.

There are several parts to a meaningful discussion about norms. The first is about the scope of the system itself: when should the system, being a set of *public* interventions, operate and what should instead be left to private persons to determine? What does regulatory overreach look like, and when has it gone too far? Once we have a sense of what roles the oceans management system might play – when it is legitimate for it to intervene in *some* way (eg to protect the environment, allocate resources or to support particular sectors) – we can turn our mind to what it is trying to achieve when performing those roles (its objectives).

What we want the system to achieve ultimately depends on our worldviews. This is the second key element of a normative inquiry. Which values and worldviews

should underpin the system? For example: do we see the oceans as a collection of resources to be husbanded carefully for future human use? Do we see *te moana* and the elements within it as a metaphysical entity capable of rights, interests and pain? Why is it wrong to hunt marine mammals but excusable to operate fishing nets in a way that risks killing them? Is access to the oceans and its resources a "birth right" for all New Zealanders, or just for those who can afford to pay for it (like most land)? And what is the nature of our moral obligation to future generations? Perhaps surprisingly, the current system fails to provide clear or consistent answers to such questions.

The third step is to consider what a mix of worldviews and ethics might mean for the legal principles that are deployed in a future system (for example, various iterations of "sustainability", "intrinsic value", "efficiency" and "fairness"). The fourth and final step is to think about what all this means for the specificity of the objectives being sought through the system (eg whether we specifically transition away from particular industries and ways of doing things, or leave objectives more malleable by describing them in terms of general outcomes like "resilience" or "ecosystem based management").

1. What is the appropriate rationale for the system (the conceptual boundaries beyond which the system should play no role)?
2. Within those boundaries, what basic worldviews could underpin the things the system is trying to achieve?
3. Framed by those worldviews, what legal and ethical principles could guide the design of the system and the decisions made under it?
4. What specific objectives could the system be seeking to achieve beyond general principles?

Secondly, Chapter 4 presents a selective range of ideas to prompt discussion about what norms should underpin a future system, and what implications those choices might have when it comes to options for system design. For example:

- Through the lens of *te ao Māori*, the environment is not seen as a collection of resources to exploit for

human benefit, nor as a separate entity to protect; rather, people are part of a cosmological system based on kinship, respect and reciprocity.

- The idea of ecosystem services generally focuses on the benefits to *humanity* of ecological processes. For example, species like kelp, mangroves and shellfish can take pollution such as nutrients, sediment and carbon out of the water column. A future system could strive to restore elements of the environment that provide those services, to prevent humans

suffering harm, potentially leading to a concept like “maximum sustainable pollution”. Should we instead focus on the cause of our pollution, and just leave the marine environment alone?

- A “just” transition for oceans is interesting to consider, because this is equally about the justice of what we want to achieve as it is about the justice of the process of getting there. There are multiple ways to look at what outcomes would be equitable or just, including using the principles



of distributional equity, environmental justice, inter-generational equity, ecological justice and procedural justice.

- The principle of distributional equity raises many complex questions about fairness in a future oceans management system. There are questions about how rights and benefits should be distributed (including under te Tiriti), and who decides on their distribution. We may also need to consider whether existing rights need to be “wound back”, and the reasons for which that would be legitimate or not.
- Environmental justice is about who bears the cost of environmental degradation, and is closely related to indigenous environmental justice and te Tiriti. It is not clear that the costs of degradation (eg between land-based and marine activities) are being shared in an equitable way.
- Intergenerational equity is about maintaining the ability of current people to meet their needs while not compromising the needs of future generations. However, what the needs and interests of future generations are with respect to the oceans is not always clear.
- The principle of ecological justice sees the natural world as an actor within, not an object outside, the human community of justice. This could have implications for institutional design, including in the deployment of legal personhood in the marine setting.
- Procedural justice will be important in any transition towards a reformed oceans management system, especially concerning te Tiriti. Even if a substantive outcome is fair, it does not mean that the process has been. That can be seen in past efforts to achieve protected areas beyond the scope of the Marine Reserves Act.

- Is it morally right for our objectives for a future system to be driven by the desire to create ecosystem services that benefit people?
- What would an equitable distribution of resource use rights look like in a future system?
- Would an answer be different if we considered what fairness to *nature* would look like?
- Would it be fair to provide “compensation” to rights holders when activities are prohibited or restricted, or do we just accept that environmental protections are the cost of doing business?
- Should we seek to provide future generations with their basic needs, or provide them with the same enjoyment of the environment as us?
- Is it more important to future generations that we prevent environmental degradation or develop resources they can use?
- Should the ocean be given legal personhood?

On land, Aotearoa New Zealand’s approach to resource management is arguably moving away from a laissez-faire approach and towards setting specific objectives and forcing change in quite a directive way to achieve them (eg for climate change mitigation and adaptation, and in spatial planning for urban growth). It is worth considering whether it is desirable for a future system to apply similarly directive strategies to the use of ocean space and to more proactively intervene to execute them.

As one hypothetical illustration, we pose the question: could we consciously transition away from commercial fishing of wild fish stocks to farming seafood in aquaculture operations, as a way of both generating more wealth from marine space and reducing environmental impacts from marine activities? We conclude that this presents significant problems, not just with respect to the legitimacy of the objective, but also with the process of getting there. We are not suggesting that this transition happens, but it is a useful scenario to consider the ethical conundrums that could arise when the system attempts to direct specific and transformational change.

- Is it appropriate for “planning”, rather than the market, to play a greater role in determining the future uses of our marine space than it does for land? How directive should this be, and for what reasons?

A few points will be particularly important to explore further. For example: are there viable alternative principles to “maximum sustainable yield” and “sustainable management”? How could we deploy and use principles embedded in te ao Māori to inspire new concepts like te mana o te moana (authority over the sea)? What does a te Tiriti compliant set of norms look like? How could we define and apply ecosystem-based management in a useful way in a future system to avoid it becoming just another buzzword?

Overall, oceans system reform presents policy makers with challenging normative choices. This is not just about defining or drafting general principles and purposes in legislation. Norms also have direct implications for more fundamental design choices, such as what kinds of tools we use (eg *rāhui*,⁸ legal personhood, pricing mechanisms) and how specific our objectives are (eg general biodiversity protection vs supporting or transitioning away from particular industries). In other words, the norms underpinning a future system will determine what we are aiming for (and by when) and the choice of tools we deploy to get there. There are no hard and fast answers, but there are many conversations worth having.



Port of Wellington

Reconsidering the toolkit

In Chapter 5, we consider the “toolkit” of the oceans management system. This concept encompasses all interventions that could be made through the system (for instance, RMA-style plans and consents, fisheries sustainability measures, or non-statutory measures like strategies, subsidies and behavioural incentives). First, the chapter outlines a range of possible tools that could be deployed without overhauling existing legislation. This outline is not comprehensive, but is designed to prompt discussion about whether many issues we face could be addressed simply by using some of our toolkit better. Secondly, it considers how new tools (particularly marine spatial planning and an oceans policy) could be used to better connect parts of our fragmented system.

Tools do not exist in isolation. Policy makers will need to think about how different types of tools work together (including strategic tools, regulatory tools and non-regulatory incentives) and where effort should be focused. For example, there is the question of how a tool like the emissions trading scheme interacts with tools under the RMA and Fisheries Act when it comes to the emissions implications of bottom trawling, and how a strategic tool like an oceans policy could influence regulatory frameworks (eg regional coastal plans under the Resource Management Act (RMA)).



Oyster farm, Mahurangi Harbour

We will continue to consider tools in our final report. In particular, it will be important to think about “types” of tools in the round, rather than just tools that could fit within the machinery of existing statutory frameworks. Some types of interventions (eg marine protected areas, economic incentives, legal personhood) may need to be deployed in a coherent way across multiple frameworks, and therefore be looked at as tools in their own right.

The Resource Management Act, Natural and Built Environments Act and Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act

The RMA presents a number of opportunities to use and expand the toolkit for oceans management. Horizons open up even further through the proposed replacement of the RMA with a new NBA.⁹ For example, the draft purpose of the proposed Natural and Built Environments Act (NBA) — *te oraanga o te taiao*¹⁰ — could encourage tools like national direction, plans and consents to approach oceans management more protectively and holistically. It could provide for iwi/hapū to use tikanga to further define what that concept means at place (through regional plans). Mandatory limits and targets could be included for the marine environment under the proposed NBA. It could contain new, more directive types of tools where an environmental limit is threatened, like emergency marine conservation orders. This could open up the potential for iwi to be empowered to use such tools in a way that reflects traditional uses of rāhui.

New national direction could also be created under the more comprehensive National Planning Framework envisaged for the NBA, including for wastewater and stormwater discharges, offshore aquaculture, and how *te Tiriti* obligations are to be applied in the coastal marine area. The New Zealand Coastal Policy Statement (NZCPS) itself could be strengthened, or expanded in scope to deal with national-level impacts of fishing on marine biodiversity. Mandatory regulatory provisions (in the nature of an National Environmental Standard (NES) could be provided for at a national level to give effect to the NZCPS. A National Planning Framework also provides an opportunity to structure national direction more logically, and for marine

matters to be more thoroughly integrated into other parts of national direction (eg forestry, urban development).

The NBA could provide greater framing around when powers should be transferred to iwi in the marine environment, potentially linked to claims under the Marine and Coastal Area (Takutai Moana) Act (MACA Act). There are tools for delegating power and giving effect to te Tiriti principles currently sitting unused in the RMA's toolbox.

Defending existing use rights could imperil the ability to achieve environmental change, particularly in the oceans (eg where sediment and other runoff from land can have devastating impacts long after a land use stops). They may need to be overridden where environmental limits are threatened (eg to avoid significant impacts on protected areas in or near estuaries). The NBA provides an opportunity to rethink this relationship.

The RMA (and the NBA) are not just about protecting the environment, however; they also have significant roles to play when allocating resources, including with respect to coastal occupation rights. Options for allocation in the future could include tools like auctioning and the mandatory use of tendering (or the development of national policy to clarify when they should be required or encouraged, including clearer principles as to the outcomes sought and with respect to the duration of rights). We could also return to the idea of spatially allocating aquaculture management areas as part of a wider marine spatial planning process.

Many of the above points are applicable to the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act (EEZ Act) as well. However, a handful of other options also stand out with respect to this statute. Most obviously, since 2017 there has been the ability to promulgate an EEZ policy statement under the Act. Yet no such instrument has been made. Such a policy statement could build on the relevant provisions of the NZCPS, or target policy towards the activities likely to occur in the EEZ (eg mining, offshore aquaculture). It could also – even at a broad level – be used to provide spatial protections by identifying valuable features of different areas (eg the Chatham Rise or around Rangitāhua/the Kermadec Islands) where harmful activities would be off limits or restricted. Additionally, te Tiriti provisions in the EEZ Act could be amended to be more consistent with other environmental statutes.

The Fisheries Act

Several tools under the Fisheries Act could be deployed or used better in a future oceans management system: particularly, the “sustainability measures” enabled under the Act. These sustainability measures can encompass a wide range of things, such as:

- Setting the total allowable catch (TAC) (and within that total allowable commercial catch (TACC))
- Restricting the size, sex or biological state of the species harvested

- Restricting the areas from which any species may be harvested
- Restricting the fishing methods that can be used to harvest any stock or which are deployed in any area
- Restricting the fishing seasons that apply to any stock, any area, any fishing method or any fishing vessel
- Other methods not specifically described which are aimed at managing the effects of fishing on any stock or on the marine environment

Methods to further reduce the impacts of fishing could include the creation of additional benthic and other protected areas, and minimum requirements for fishing gear (coupled with incentives for innovation and uptake). It would also be possible for regulations to simply prohibit or phase out activities like bottom trawling and dredging in coastal waters, although for some fishers that may cause hardship and need to be accompanied by supporting measures.

Despite a broad range of management tools, relatively few have been deployed since the QMS was introduced. In many places, management of commercial fishing has largely focused on the setting and (in some cases) adjusting of the TACC. The problem is not so much that the tools are lacking; rather, that there is a lack of will to use them.

It may therefore be worth considering whether a similar approach to that proposed in the NBA should also inform the reform of the Fisheries Act – the idea of having a mandatory, comprehensive set of firm environmental limits rather than just a toolbox of measures to be deployed in a selective or discretionary manner. These limits could be supported by a national fisheries environment strategy, outlining a strategic plan for how sustainability measures would be rolled out to meet environmental limits. This could provide clarity as to what kinds of measures are legitimate and necessary to achieve the purpose of the Act, and which might still trigger compensation or support.

Fisheries plans could conceivably be made mandatory, their place/hierarchy in the system made clearer, and their content or at least their purpose prescribed. Fisheries plans and permits could operate in a manner more similar to the RMA/NBA, where a “consent to fish” and conditions are linked to and justified with respect to the environmental policies and objectives of a plan. They could be place-based to complement mandatory regional coastal plans under the RMA.

The focus of decision-making under the Fisheries Act could also shift. First, the Harvest Strategy Standard, which is currently used as a non-statutory guide when setting catch limits, could be formalised in legislation as a core part of the system. Secondly, the stock assessment process, and TAC, could also move away from a focus on single stock assessment and “counting fish” towards a more ecosystems-based approach.

We are continuing to explore various other options for how tools could be deployed more effectively under the Fisheries Act, whether under current settings, or with reasonably small-scale legislative amendments (and we set out a number of these in the main report). Whether these are good options or not depends fundamentally on one's worldview, and therefore how one defines problems and objectives. We welcome feedback and discussion.

There are also some more fundamental options to think about. One of these is whether the property-based tool of the QMS should remain at all (or be fundamentally changed). On one hand, the QMS has successfully rebuilt some fish stocks, enabled iwi settlement, and facilitated significant capital investment in the sector. It would be extremely difficult to dismantle. On the other hand, the existence of strong and perpetual property rights, without closely associated responsibilities, may be a reason why some sustainability measures have not been imposed in practice.

Rather than unravelling the entire QMS system, a more modest option might be the purchase and retirement or redistribution of a smaller portion of quota by the Crown on a willing seller basis. The Crown (or an arm's length agency) could become a significant quota holder, itself leasing out quota or annual catch entitlement (ACE) in order to achieve positive social, environmental or other public outcomes (eg leasing ACE at less than market value for fishers using environmentally friendly techniques, or gathering scientific information).

- Should the QMS be unwound entirely and replaced with a non-market-based system (eg permitting)?
- Should there be some buyback of quota, and the establishment of a public quota holder to lease out rights based on a broader range of social and environmental factors?

Another fundamental option is whether Fisheries Act tools could be used in quite a different way beyond the purpose of the Act. For example, setting a catch limit is a tool currently deployed under the Fisheries Act to maintain fish at a biomass that achieves maximum sustainable yield. However, some experimentation with the tool has occurred as part of the proposal for the Rangitāhua/ Kermadec Ocean Sanctuary, and it begs the question as to whether we should be able to use fisheries tools like the TAC for broader purposes (eg conservation or marine protected areas).

- Should Fisheries Act tools like the TAC be "hijacked" by other frameworks with quite different purposes, such as for marine protected areas (zero take) or areas in which pressures on habitats for broader biodiversity reasons need be reduced (eg under the RMA/NBA)?



Crayfishing, Mercury Bay

Tools under other frameworks

We are continuing to give thought to a number of other tools that could be deployed in more effective ways and how gaps in the toolkit could be filled. Some tools can be found outside marine focused statutes, such as product stewardship schemes under the Waste Minimisation Act to address marine plastic pollution, and mechanisms in the Local Government Act and the Building Code to address the impacts of wastewater and stormwater on the ocean.

Integrative tools

There are many ways that connections could be improved between legislative frameworks. More effective cross-referencing between existing frameworks could be used to ensure that their tools are deployed in a more coordinated and strategic manner. The NZCPS could be expanded and deemed to be an EEZ policy statement and/or a fisheries strategy for the purposes of those other acts. Existing legislation could be amended to provide for cross-cutting or more aligned purposes and principles. However, those measures may not be enough to hold the system together. As on land, resolving the issue of fragmentation may require an overarching instrument, capable of reaching across multiple frameworks and taking a strategic and coordinated approach to how each framework would be deployed to achieve a common vision. Marine spatial planning is one such tool.



Marine spatial planning

Integrated marine spatial planning has a number of potential benefits. It provides a forward-looking strategic lens and a pathway to get there, and a mechanism to integrate different tools under separate statutory (and non-statutory) frameworks. It also allows collaborative conversations to happen that are place-based and not just focused on one interest at a time.

There are many options for how marine spatial plans could be configured. They could include environmental bottom lines, targets and outcomes for the marine area. These could be strategic only, and rely on implementation through other frameworks. Alternatively, they could include regulatory provisions themselves, and a direct pathway for things like environmental limits and marine protected areas (a way to “get around” the existing system). Marine spatial plans could be targeted to areas where there are particular issues or conflicts, or cover all the country’s marine areas. There could be specific trigger points specified for when a planning process was deemed necessary.

Furthermore, marine spatial plans could be developed either by a co-governance partnership (consisting of representatives from central, regional and local government and iwi/hapū) or by a collaborative stakeholder group overseen by the governance body. Either way, it would be important for a governance body to remain in existence at least to oversee implementation of the plan. Linkage with other frameworks would be important to ensure that implementation occurred. International experience highlights the importance of marine spatial planning having clear and direct influence, and a clear implementation pathway, as well as the value of collaboration between stakeholders.

There is currently no legislative framing for integrated marine spatial planning in Aotearoa New Zealand. However, a non-statutory marine spatial planning process was undertaken through the Sea Change – Tai Timu Tai Pari initiative and is currently being implemented, partly through existing legislation and partly through new legislation. A number of lessons can be learnt from that process.

- Should marine spatial planning and spatial planning on land be done separately, or through the same (or connected) processes?

From spatial planning to an oceans policy

Policy makers could, however, think more broadly by contemplating not just spatial plans but also an integrated oceans policy. An oceans policy could be closely linked to, and provide a set of common principles for, marine spatial planning. One option could be the development of a Marine Spatial Planning Strategy by the Minister of Oceans, that provides a policy framework for marine

spatial planning and sets out a programme for developing marine spatial plans around the country. However, the concept of an oceans policy goes beyond this.

At root, a national oceans policy is essentially a mechanism to provide a coherent approach for oceans management across a country's entire oceans realm. This is in the context of typically fragmented legislative and institutional arrangements. It is often seen as a way to address conflicts between different ocean uses, to support new oceans uses and to provide protection for oceans ecosystems and species. It is not place-based, and instead sets out a vision for the oceans as a whole and high-level principles.¹¹

An oceans policy could, in practice, be little more than a politically driven agenda for reform – a type of manifesto for change – which is arguably what the government's establishment of a high-level vision and objectives for oceans is at the moment.¹² However, an oceans policy could be conceived of as something more concrete – a structural and living feature of a future system (an actual instrument with ongoing influence) – rather than just a manifesto or process by which a new system is transitioned to. Part of this could be a strategy for *deploying* marine spatial plans. But it could, with sufficient framing, be a form of “constitution” for the oceans.

- Should an overarching Oceans Policy be developed in Aotearoa New Zealand to set high-level goals and outline a vision for the future?
- Should this be a manifesto for reform (with an end point) or a living instrument with ongoing application to how decisions are made under other frameworks?
- Is this kind of thing worth doing if it lacks direct effect or influence on other regulatory or funding frameworks having their own more targeted purposes and processes?

In Chapter 5 we also look at some international experience with oceans policies and marine spatial planning to assess the positives and negatives of *legislating* to achieve integration. It is also interesting to look at the Sea Change – Tai Timu Tai Pari spatial planning initiative. A key issue there was the lack of an enduring champion to oversee implementation of the plan. Non-statutory plans require strong political leadership, which may wax and wane due to election cycles.

Currently, there is no compulsion to undertake marine spatial planning, even if there are pressing issues in the marine environment, including serious environmental degradation. A statutory framework that both initiates marine spatial planning and provides agencies, mana whenua and stakeholders with guidance on principles and process steps could spur effort in this area. A statutory framework could also avoid procedural steps, such as consultation, being split across existing regulatory frameworks and duplicated.

- Should marine spatial plans and an oceans policy be statutory tools?
- Would this require a separate statute to be created to overlay existing ones, or could an existing framework be used?
- To what extent should the legal framing for marine spatial planning be prescriptive or flexible?

From tools to structural reform

The tools deployed in a future oceans management system are where the rubber hits the road. They can be strategic, outlining a vision for the future and ways to get there. They can be regulatory, preventing people undertaking certain activities or requiring them to take action. Or, they can be non-regulatory, including mechanisms for raising and spending money, taking direct action like restoration activities, and implementing softer measures like behavioural incentives and education. Our toolbox is vast, and there are new tools we could develop. However, a lot could be done by using our existing tools better, which may require surgical legislative change or no amendments at all. All we might need is the resources and inclination to use them in innovative ways (or at all).

However, tools do not exist in isolation. They need to be deployed in a coordinated way across space and time and be geared towards achieving compatible goals. Integrative tools like marine spatial planning and an oceans policy have potential to provide stronger glue in what has become a fragmented system, and one that does not reflect the interconnectedness of either the marine environment or the problems facing it. Many tools also need to be framed within legislation, which provides transparency around how they will be developed, used and (if they are regulatory) enforced. They also require institutions to deploy them – they do not happen by magic just because they are on the statute book. In chapters 6 and 7 of the working paper we consider some options for legislative design and institutional settings that could support a future toolkit.



Akaroa Harbour



Kina barren

Legislative design

A lot could be achieved by reconsidering the toolkit of the current oceans management system, whether by using tools already available or by amending/adding to the toolkit. However, it is not immediately clear that this will be enough. Arguably many issues with the system stem from how our package of legislation has been designed – where boundaries are drawn, what falls between the cracks, and what this means for how statutes interact.

In Chapter 6 we consider possible conceptual frameworks for designing legislation for a new oceans management system. Drawing on previous EDS work on legislative design, we highlight some key principles: in short, legislation in the oceans management system should be designed and arranged to be coherent, certain, accessible, durable, integrated, tailored to Aotearoa New Zealand's circumstances (including te Tiriti), and efficient. Overall, good legislative design demands that statutes are divided in a way that makes sense. The first section of this chapter explores possible ways statutes could be divided.

We then consider some more specific options for reforming our legislative landscape. This is designed to prompt discussion and feedback, and does not delve deeply into whether those would be good or bad ideas. Across all legislative design options there is the proliferation of Treaty settlement legislation to consider – which must be upheld, and which weaves into existing legislation (and would similarly do so in future legislation) in sometimes complex ways.

Ways of dividing up statutes in the oceans management system

There are many different ways of dividing up the statute book. Several broad types of division are notable in the current oceans management system, and could form a helpful basis for discussing future possibilities.

First, it would be possible to divide up statutes on a spatial basis, reflecting that different spaces require different treatment. Many “spatial” divisions are observable in the current system. For example, there is a sharp jurisdictional line at 12 nautical miles between the RMA and the EEZ Act. Another type of spatial division is between national-level legislation, like the RMA or the Conservation Act, and spatially specific legislation, such as statutes applying to the Hauraki Gulf or Fiordland.

Secondly, statutes could be divided primarily on a sectoral basis. This occurs in the current system with the Fisheries Act (focused on fishing activity) and the Crown Minerals Act (focused on mining).

Thirdly, statutes can be divided according to differences in their purpose. Some statutes may manage the same thing but try to achieve different outcomes. For example, the RMA, Biosecurity Act and Maritime Transport Act all manage marine “environmental” effects but have distinct purposes. However, it is not always easy to determine when one purpose is sufficiently similar or compatible with another to warrant inclusion in the same legislation. Arguably many frameworks could fit comfortably within the broad purposive framing of the RMA, for instance.

Fourthly, the types of *tools* contained in statutes can dictate how they are split. Some pieces of legislation are created as a framework for one or more quite specific or complex tools (rather than seeking to achieve an entirely different purpose) and therefore have purposes that overlap with other acts. For example, although climate change mitigation falls within the purview of the RMA, the emissions trading scheme (and associated measures) is complex and forms a standalone tool under the Climate Change Response Act. If a tool (eg the QMS) would not fit easily into the scheme of one statute (eg RMA or NBA), it may require a home elsewhere. We therefore need a sense of which tools we want to deploy and how those tools are intended to relate to each other before tackling questions of legislative design.

Statutes forming part of the oceans management system can be concerned with things other than the oceans, and close intra-statutory connections may be needed to bring those things together. It is important to remember (for example, when considering options like an integrated Oceans Act) that integrating in one way can cause fragmentation across other important systems (such as for biosecurity or waste minimisation).

Options for reform

Many options are available when it comes to legislative redesign, from the relatively minor to the more extensive. (Reform might also provide an opportunity to integrate or otherwise rationalise a range of older or more

“administrative” marine statutes into more modern ones to create a more coherent statutory scheme.)

Some divisions between existing statutes could be removed to encourage integration. For example, the Continental Shelf Act could be subsumed into the Crown Minerals Act, as it is currently little more than a skeleton framework through which key parts of the Crown Minerals Act are deemed to apply beyond the coastal marine area. Secondly, the RMA (or its replacement) and EEZ Act could be combined into a single statute. Merging the RMA and EEZ Act would recognise that the 12 nautical mile line between the frameworks is arbitrary when it comes to the environmental focus of the statutes, that cross-boundary management adds complexity, and that the division can create perverse incentives for where applicants choose to locate potentially harmful activities. The RMA/EEZ Act could, if combined, also subsume legislation for marine protected areas (whether the Marine Reserves Act or new, separate marine protected area legislation). Thirdly, the Wildlife Act and Marine Mammals Protection Act could

be combined (and updated) to break down the arbitrary distinction between the protection of different species in the marine area, and potentially overlapping tools like wildlife sanctuaries and marine mammal sanctuaries.

Reforms could also seek to draw jurisdictional boundaries in more optimal or nuanced places. The RMA and EEZ Act could be split in a different way, for example: a land and coastal focused piece of legislation extending out to (say) three nautical miles, and oceans focused legislation beyond that boundary. Conservation legislation could be updated and integrated, subsuming existing legislation like the Conservation Act, Wildlife Act, Marine Mammals Protection Act and Marine Reserves Act (or new marine protected area legislation).¹³ Similarly, marine protected area legislation could update and integrate the Marine Reserves Act with area-specific conservation legislation (eg aspects of bespoke legislation for Fiordland). Conversely, there may be some benefits in continuing to create bespoke statutes for individual marine protected areas.



Rethinking the boundary between the RMA and the Fisheries Act

There is a complex and still relatively unclear boundary between the RMA and the Fisheries Act, and many questions remain even after the Court of Appeal clarified some things in its decision in *Motiti*.¹⁴ Reforms might contemplate shifting the boundary between the sector-focused Fisheries Act (with a purpose of sustainable utilisation) and the outcomes-focused RMA/EEZ Act (with a purpose of sustainable management). One option would be to shift some environmental responsibilities more clearly away from the Fisheries Act and into the more developed planning and consenting framework of the RMA/NBA (and potentially EEZ Act), making the interface more like that between the RMA and the Crown Minerals Act.

- Should responsibility for the impacts of fishing on biodiversity and the environment (other than fish stocks themselves) be more firmly shifted away from the Fisheries Act and into the RMA/NBA?

A more far-reaching option would be for the Fisheries Act to be a home for the QMS and other allocative mechanisms, but for all sustainability measure (including catch limits) to be set instead under an expanded NBA (whether at a central or regional level, or both).

- Should the sustainability measures contained in the Fisheries Act be transferred into the RMA/NBA?

However, there are practical reasons to suggest that tools for setting catch limits and other mechanisms for managing fish stocks themselves (eg bag limits, seasonal closures) might be better placed under a separate framework like the Fisheries Act. The nature of these tools is quite different to those under the RMA, and RMA decision-makers may not have the expertise to deploy them. On the other hand, responsibilities and expertise could be reshuffled so that fishing decisions became more integrated into the fabric of resource management legislation, and the new NBA provides an opportunity to consider such possibilities for integration between the frameworks.

- Do the potential advantages of shifting catch limits and other stock management tools from the Fisheries Act to the RMA/NBA outweigh the potential disadvantages?

An Oceans Act

Perhaps the most far reaching legislative design choice in a reformed system would be the creation of an Oceans Act. There are two ways to think about an Oceans Act: as an integrative or “umbrella” type statute (under which marine spatial planning would occur, as described in Chapter 5, and have influence over decisions made under separate frameworks like the RMA/NBA and

Fisheries Act), or as a more integrated statute that directly combines several existing acts into one place. The latter would be a more radical way of arranging legislation.

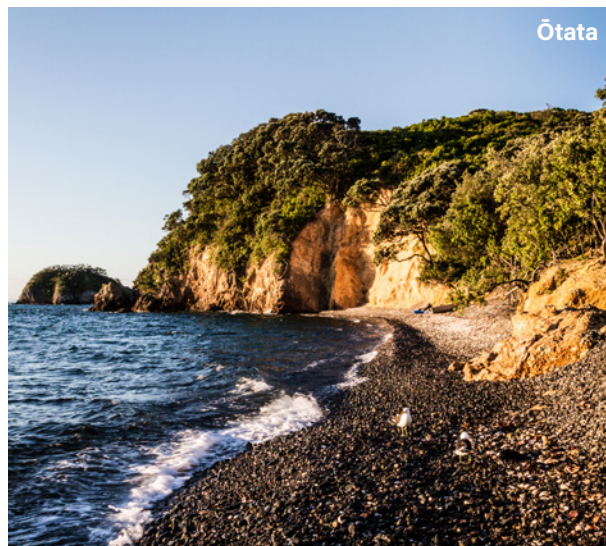
An integrative Oceans Act: an umbrella statute

It might be possible for an integrative Oceans Act – a home for marine spatial planning – to be progressed within the proposed Strategic Planning Act. This Act, envisaged by the Randerson Panel, would be designed primarily for spatial planning on land (in particular, aligning infrastructure with urban land use change) but would be envisaged to apply to parts of the marine environment as well. It therefore provides one option for progressing marine spatial planning.

However, using this would have downsides. Spatial plans under the proposed Act would not extend out to the EEZ, which comprises the bulk of the country's marine area. This is a significant shortcoming. It could be overcome by simply expanding the scope of the Strategic Planning Act so it had legal influence over decisions made under the EEZ Act as well as the RMA, which could happen in a variety of ways. However, that would create further complexity in a system that arguably requires simplification and rationalisation.

The scope of the Strategic Planning Act could also be expanded, so it had legal influence over decisions made under the Fisheries Act. However, it is not clear what the direction of influence should be (ie whether spatial planning should be guided by decisions under the Fisheries Act, or the other way round).

The purpose of spatial planning on land and at sea is also arguably quite different. Marine spatial planning is more firmly rooted in the concept of ecosystem-based management, whereas terrestrial spatial planning is (at least partly) driven by the need to coordinate land use and public infrastructure funding and supply. That calls into question the appropriateness of undertaking these processes under the same legislative framework, although dual purposes and processes could be provided for.



An integrated Oceans Act: combining legislation

There are various options for what a more integrated Oceans Act could encompass, ranging from the simple integration of the marine parts of the RMA and EEZ Act (eg split at mean high water springs) through to combining the marine components of conservation legislation, the Fisheries Act, the Biosecurity Act, the Maritime Transport Act and potentially others. What it included, and what it excluded, would be important considerations, and possibilities are diverse.

However, an integrated Oceans Act of some form may have benefits. For example, it could provide the opportunity to establish a set of common, high-level principles for allocating rights to common resources. It could target the challenges of managing the marine area directly, and it would likely better address interactions between different activities (and their effects). It would have regulatory and funding mechanisms to directly implement marine spatial planning. Another key benefit is that it could provide a more generalised framework for iwi and stakeholder involvement in regional and local marine management, rather than this being approached differently across a plethora of different statutes. Additionally, if an Oceans Agency were created to administer an Oceans Act, this body could develop a critical mass of expertise in oceans management and help ensure a dedicated focus on marine issues.

However, there may also be considerable downsides and risks of “over-integrating” legislation into an Oceans Act. Extensive legislative change can cause disruption and take time, and the resulting legislation could become quite complex and long. The tools used under the various pieces of legislation can be quite different and be deployed across different timeframes (eg resource consenting, fisheries QMS, maritime safety), meaning legislative integration may be superficial in practice (and simply be a stitching together of different frameworks).

Furthermore, the boundaries of the marine area will always be a difficult boundary to address and manage, and by over-integrating marine-focused matters, we could weaken the important linkages between the land and sea (eg under the RMA/NBA, conservation legislation and Biosecurity Act). Extensive integration would also require the development of a new agency from parts of existing ones, because no existing agency has the skill sets required to manage all these areas. It may be difficult to meld very different agency cultures (a problem the Department of Conservation encountered when it was first established). This would also potentially make it easier to defund marine management overall by reducing budget allocations to a dedicated Oceans Agency (as happened with the Department of Conservation) and potentially forcing it to pick and choose between its functions.

- Should the Strategic Planning Act be expanded to apply to the EEZ, and what should its relationship with the EEZ Act (and instruments under it) be?
- Should the Strategic Planning Act be expanded to include fisheries considerations? If so, should a spatial plan influence decisions under the Fisheries Act, or should decisions under the Fisheries Act shape the spatial plan?
- Should a more integrated Oceans Act be created? If that were to happen, what existing statutes (or parts of them) should be subsumed?
- Would the potential benefits of integrating marine matters be outweighed by the downsides of fragmenting other systems (eg the catchment-sea interface, the movement of species across domains, biosecurity, the transport system)?

We are continuing to explore how various legislative design options could be framed in a way that is most useful for policy makers. Boundaries can be drawn in quite different ways and by looking through different lenses. The boundaries between fisheries legislation and “environmental” legislation, and between legislation that applies to the land and sea, are particularly difficult ones.

It is reasonably clear that fragmentation across the system is problematic, and connections and alignment between legislative silos are often weak. There is also a great deal of complexity in our statute book. However, fundamental legislative changes warrant caution. For one, fundamentally overhauling whole statutory frameworks risks opening up debates that can derail the entire reform process. For example, the enormity of the task ahead to resolve the hundreds of claims made under the MACA Act means there may be little appetite for interfering in that statute in a significant way.

Policy makers also need to be sure that investing in the expense, difficulty and time to overhaul statutory frameworks is worth it. It may be naïve to hope that changing how statutes are arranged will automatically produce better outcomes, since integration in one way can cause fragmentation in another. A lot comes down to how statutes are implemented. Central to that are the institutions that administer and have functions under legislation, irrespective of the specifics of how legislative boundaries are drawn.



Godwits, Miranda

Umupuia

- To what extent should there be a transfer of decision-making power to mana whenua with respect to fisheries, coastal occupation and customary use, and on what basis/for what things?
- What is the proper role of a centralised body like the EPA when it comes to marine management? Should it have a clearer mandate?
- Should three water services (including wastewater and stormwater) with significant impacts on the marine environment, continue to be managed by territorial authorities and council-controlled organisations, or should there be greater centralisation?
- How much central involvement should there be in the development of marine spatial plans? Should they be driven by communities, or national level concerns, and in what measure?
- To what extent should fisheries management be devolved to quota holders and operators (eg through industry-led fisheries plans), and does there need to be more clarity around when that is acceptable?

Independence vs accountability

Another question of institutional design to consider is the balance between independence and accountability. For example, should there be an independent or arm's length Oceans Agency (potentially an expanded and strengthened EPA) to take on some regulatory decision-making (eg consents, sustainability measures) instead of accountable institutions like councils and ministers? On the other hand, might it be desirable to have a higher level of accountability, such as decisions under the Fisheries Act being opened to merits review by the Environment Court? Currently, judicial review is arguably an ill-fitting mechanism for affected persons to challenge fisheries decisions.

An independent Oceans Commission could act as a watchdog and hold the government to account, or it could serve as an expert appeal body for some marine management decisions. Again, this question raises issues of co-governance; for example, if we were to establish a Tikanga Commission at a national level, should this be an independent expert entity focused on mātauranga at a general level (Aotearoa-wide), or a more democratic institution that is representative of iwi and hapū and reflects different versions of tikanga across different rohe moana (areas of authority)?

Subject and geographical focus

A further question is how specific the subject matter and geographical scope of institutions should be. Currently, marine matters are fragmented across multiple councils, departments and agencies. Should we continue with this approach, or seek greater integration with the marine area as the focus? If so, how should this be done? Should

there, for example, be an Oceans Ministry, or a less formal framework by which the activities of existing institutions are aligned? If dedicated oceans institutions are created, consideration must be given to where jurisdictional boundaries should be drawn between land and sea, and what to do if jurisdictions overlap (eg in the coastal environment or where species cross boundaries).

Mandate and formality of creation

Another set of questions relates to what mandates institutions should have, and how institutions should be created. If we were to have an integrated Oceans Ministry, what should its mandate be? For example, there can be value in Ministers receiving different streams of advice from departments with relatively clear and tightly focused mandates (eg the Department of Conservation). It can, for example, make the trade-offs in decision making more transparent when conflicting advice can be clearly seen. It may also be desirable to clarify the mandates of existing institutions. For example, what should the mandate of the EPA be in the marine space? The EPA in Victoria, Australia has a much clearer mandate compared to New Zealand's version.

Moreover, if new institutions are created, should they be formally established in statute? The Ministry for the Environment and Department of Conservation have been established in this way and are therefore resistant to structural change and retain reasonably clear mandates. But other government departments are not creatures of statute. What would that mean for options like an Oceans Ministry?

Power

Lastly, it is important to consider where the balance of decision-making power should lie in the oceans management system. Should, for example, decision-making power for some things be vested in more independent or arm's length institutions like an Oceans Agency or EPA (or Environment Court), or instead lie with institutions that are accountable to voters (Ministers and councils)? Consideration of checks and balances is also important when powers are being exercised. Should, for example, there be an independent Oceans Commission and Tikanga Commission, or an expanded role for the Parliamentary Commissioner for the Environment, to ensure that ministers and councils perform their policy and regulatory roles as intended? Are appeal rights appropriate for national level decisions as much as for local (ie council) decisions?

Such questions, and no doubt many others, give rise to some interesting possibilities for institutional design, which we are continuing to explore. We are interested in feedback as to what characteristics oceans institutions could have, how they could relate to each other, and whether they would be helpful or not. Figure 3 shows some options for potential institutional arrangements.

An Oceans Ministry	A future system could combine all the marine elements of existing government departments into an integrated Oceans Ministry. This would create a greater focus on marine issues and go beyond the integrated ministerial portfolio for Oceans and Fisheries and the current Oceans Secretariat.
An Oceans Agency	An integrated, arm's length oceans regulator could be created, which could take on some or all marine functions of regional councils, the EPA, Maritime New Zealand and potentially even the Department of Conservation. This could, however, cause fragmentation across the land-sea divide and the organisation may lack a clear purpose or mandate.
Strengthening and expanding the role of the EPA in the oceans	At the moment, the EPA has a relatively limited role with respect to the oceans, and a relatively constrained mandate. As our national environmental regulator, this role could be expanded in a variety of ways. It could even become an Oceans Agency.
A greater role in fisheries management for regional councils	Regional council jurisdiction could be expanded beyond that confirmed in the Motiti decision (eg by allowing councils to set measures like TACs in local areas). ¹⁵ Such powers could also be devolved to communities and iwi/hapū in partnership.
More integrated arrangements for councils and iwi/hapū to work together in plan creation	This has been proposed by the Randerson Panel in the notion of a joint planning committee for regional plans under the NBA and for regional spatial strategies under the Strategic Planning Act. This could potentially be extended to fisheries decision-making too.
A greater role in oceans and fisheries management for iwi and hapū	Exploring institutional arrangements goes deep into questions of mana or governance jurisdiction for Māori (including the broader discussion around He Puapua), and could take many forms (eg transfer of powers to iwi/hapū, co-governance, Māori wards at council level, novel mechanisms like legal personhood for nature). ¹⁶
An Oceans Commission	This entity could take different forms (eg it could have some regulatory powers), but in essence it would be some form of independent oversight or watchdog body with a clear mandate to defend the interests of te moana. It could be designed to resemble the Climate Change Commission, the Māori Advisory Committee under the EEZ Act, or it could even be a vehicle through which te moana is given legal personhood (with the Commission being the voice of te moana).
The creation of a regionally-specific "guardians" model	This could see the replication of the guardians that have been created on a bespoke basis already (eg in Fiordland and Kaikoura), and they could be rolled out across the country. It would be one way to allow local involvement and integrated place-based oversight across multiple other institutional jurisdictions (eg conservation, resource management, fishing).
A national Māori advisory body for oceans	This could take the form of an independent Tikanga Commission with a branch focused on te moana, or it could be a vehicle for a more representative, national-level Māori body with which the Crown partners. The extent to which this would have decision-making power depends on a broader conversation about Māori sovereignty.
A more structured role for the Parliamentary Commissioner for the Environment	The Parliamentary Commissioner could have a stronger mandate (and resourcing) to be involved in the preparation of instruments related to the oceans, including regional plans, fisheries plans, and marine spatial plans.
A role for the Environment Court in hearing merits appeals under the Fisheries Act and Marine Reserves Act (or its replacement)	The Environment Court has an important role with respect to coastal plans under the RMA, but not with respect to fishing or marine protection. Its role could be expanded to provide greater oversight with respect to fisheries management and the creation of marine protected areas.
An independent science agency to conduct core oceans research or to guide/direct research needs	This would not necessarily be focused only on marine research, but that would be a core component of its mandate.

Figure 3: Options for new institutional arrangements for oceans management

In Appendix 3 of this working paper we look at some institutional frameworks for oceans management used in other jurisdictions, to give a tangible sense of potential ways forward for Aotearoa New Zealand. These include:

- *Victoria, Australia:* the Marine and Coastal Act provides for marine spatial planning under the existing Department of Environment, Land, Water and Planning and establishes a new Marine and Coastal Council to advise the Minister.
- *Queensland, Australian (Great Barrier Reef):* a specialised Marine Park Authority operates at federal level alongside the Queensland State Government.
- *United Kingdom:* an executive non-departmental body, the Marine Management Organisation, centralises key marine decision-making powers.
- *Canada:* An Oceans Act facilitates collaboration between existing departments. The existing Department of Fisheries and Oceans is the “lead agency”.
- *Australian Commonwealth:* an earlier non-statutory oceans policy initiative established the National Oceans Office to be responsible for implementation, including the preparation of marine plans, and the National Oceans Ministerial Board of Commonwealth Ministers to coordinate existing responsible ministers. An Oceans Board of Management consisted of heads of departments and dealt with operational issues and science advice was provided by an Oceans Policy Science Advisory Group.
- *British Columbia, Canada:* parallel governance by Indigenous peoples overlaps with that exercised by federal and provincial agencies.
- *Rhode Island, United States:* a Coastal Resources Management Council has broad powers to plan for and regulate the coastline and sea to three nautical miles from land.

- *California, United States:* the California Coastal Commission plans and regulates the coastal zone, extending several kilometres inland and seaward to a three nautical mile boundary. The Commission can delegate permitting authority by approving a local government’s coastal plan.

Overall, our existing marine management institutions are diverse and have a mix of characteristics. Some are highly focused, some are independent of government control, and some are devolved. They interact in complex ways when undertaking functions under quite different (or outside of) legislative frameworks.

It is debatable whether our current institutional arrangements are broken or not. However, it is certainly worth thinking about why our institutions are designed and arranged as they are, and what could be done differently. What seems clear is that the system as a whole is not *focused* on oceans, and our institutions (like our legislation) are fragmented and siloed.

One useful way forward may be in layering institutional responsibilities, so that integration is achieved at the highest strategic level but focus and clarity is achieved through more targeted entities. At the moment the former is lacking, but we are arguably already heading down this path with the creation of a ministerial portfolio for Oceans and Fisheries, a central Oceans Secretariat and the gradual implementation of our first marine spatial plan in the Hauraki Gulf.

We are continuing to give thought to the pros and cons of various institutional reform options, and how best to conceptualise them. In doing so, international experiences are instructive. Particularly important will be a deeper dive into options for implementing obligations under te Tiriti, including the partnership options developed through the Tangaroa stream of the Sustainable Seas National Science Challenge.¹⁷ While norms reflecting te ao Māori are important, as are the deployment of tools consistent with tikanga, institutional design is really where the rubber hits the road with respect to deeper questions about te Tiriti and partnership.



Sandager's wrasse (*Tanya Peart*)

Information and science in the fisheries management system

Kawakawa Bay

Glen Carbines

Institutions are an important structural feature of the oceans management system, but they cannot perform their tasks well without robust information. The creation and flow of information can be regarded as one of the networks that connect the system's different building blocks (ie legislation, institutions, and tools). In Chapter 8 of the working paper we focus on information flows within the fisheries management system through a think-piece written by Glen Carbines. We explore the nature of information, how and why it is collected, by whom it is processed, and the ways in which it is used. While fisheries management is used to illustrate how information flows through one crucial part of the oceans management system, more wide-ranging aspects of information flows in oceans management will be explored in the final report.

Information is usually divided into categories of scientific (physical and biological), social (including economic matters) or as part of the mātauranga Māori body of knowledge. It can be collected through a wide range of formal and informal methods. Mātauranga Māori cannot be "collected" as such and must come from engagement with Māori.

Fisheries NZ is the prime manager of fisheries information, with a distinct division in the way it gathers and processes scientific and social information. Scientific information is managed by the *Science and Information Directorate* which determines research needs and facilitates the development and procurement of research projects. The *Fisheries Management Directorate* collects and manages social and non-scientific information.

Fisheries information, like much information and data in the marine environment, is inherently uncertain. The Prime Minister's Chief Science Advisor's recent report on *The Future of Commercial Fishing in Aotearoa New Zealand* acknowledges that a single trusted source of information does not exist, and that the uncertainty in fisheries management can be easily shaped to support various narratives.¹⁸ The report states, for instance, that "from an agreed percentage of how many of our stocks have been assessed, to the size of the original non-fished biomass, to a percentage of this biomass that can be sustainably harvested, to whether our trawling footprint is increasing or decreasing – the very basis of our fisheries management is often fiercely contested".¹⁹

The Fisheries Act sets out information principles to be applied to fisheries decision-making, and these are further fleshed out in standards that apply to the production and use of science and how it is used to set harvest levels. Significantly, the Act states that decisions should be based on "the best available information". The *Research and Science Information Standard for New Zealand Fisheries* policy statement provides guidance on what this constitutes. The *Harvest Strategy Standard for New Zealand Fisheries* provides specific guidance for setting stock management targets, reference points, and soft and hard limits. The High Court recently held that the Harvest Strategy Standard was a mandatory consideration for the Minister of Fisheries in setting the TAC and TACC for East Coast tarakihi stocks.²⁰ It is therefore likely to play a more prominent role in future fisheries decision-making.

Research planning (ie identifying what research to invest in) is largely undertaken within Fisheries NZ. It is subject to cost recovery consultation with quota owners, which has the potential to narrow the scope of research towards extraction needs, rather than towards understanding the wider ecological system. Fisheries research is tendered to science providers, which can include industry-owned research entities. The small number of science providers within Aotearoa New Zealand means that research projects are often put out to limited tender or to only one potential supplier. Information from research in the fisheries sector is usually less publicly accessible than other environmental domain reports, as it can be difficult for laypeople to locate and interpret.

Fisheries assessment working groups are at the core of the system Fisheries NZ has adopted to manage fisheries information, with the groups reviewing almost all research proposals and outputs before fisheries managers use the information. Although members of the groups are required to be technical experts, working group meetings can be comprised predominantly of experts associated with the commercial fishing industry. Options for supporting non-commercial sectors to build the capacity to attend and engage could be considered. While the working group process can help ensure that a high standard of science is used to inform fisheries management, it can also result in useful information produced outside the Fisheries NZ science system being excluded.

Fisheries technical advisory groups are also established from time to time by Fisheries NZ, and are typically made up of members selected from various stakeholder groups who share their expertise and experience in that sector. Such groups often guide the development of options for fisheries management, which are then subject to public engagement.

For public engagement, Fisheries NZ mainly uses the written submission process based on proposals developed by technical advisory groups or internally by fisheries managers. The opportunity for the public (both fishing and non-fishing) to engage in Fisheries Act processes and decision-making is thus limited compared to the more accommodating systems and processes of legislation like the RMA, which include public hearings and appeal rights. The non-fishing public may not always be seen as core stakeholders because they “have no skin in the game”, due to the focus of the Fisheries Act on the extraction of marine life, being “utilisation”.

The extent to which the fisheries management system has engaged with sector groups has ebbed and flowed over the past 30 years. Such engagement has recently increased, which is important to ensure a flow of social information into the fisheries management system. Fisheries NZ is still exploring how to better incorporate mātauranga Māori into the fisheries management information system. It is one of many regulatory agencies beginning the process to develop approaches and frameworks for including mātauranga and te ao Māori into management of the marine environment.²¹

There are many areas where the collection and use of fisheries management information could arguably

be improved, including through enabling broader attendance and participation in fisheries assessment working groups, providing a direct conduit for mātauranga Māori, and adopting a more open process for determining research priorities.

Ultimately, fisheries science could benefit from integration into a broader and more independent environmental science system recommended by the Parliamentary Commissioner for the Environment.²² How information and data is held and shared across the oceans management system is intimately connected to institutional arrangements. This, for example, has implications for:

- how *existing* central and local government institutions operate in relation to each other (for example, the potential to have shared services or shared policy hubs in regional centres for oceans management);
- whether *new* cross-cutting institutions are desirable (eg an independent research council, but also the potential to host an integrated data and information platform, and research strategy, within an independent entity with broader policy capability – such as an Oceans Commission along similar lines to the existing Climate Change Commission);
- how a future system configures institutional arrangements more broadly (eg whether an Oceans Ministry or Oceans Agency would be well placed to facilitate the flow of and connections between different sources of information, and how mana whenua and local communities could input meaningfully into a more centralised model for data collection and prioritisation).



Longlining, Hauraki Gulf

Boil up at Cape Brett

Concluding comments

Aotearoa New Zealand is facing considerable challenges in its vast marine environment, and the existing oceans management system is not proving up to the task of tackling them. As a society we therefore need to think about not just tinkering with what we have, but also what the nature and orientation of the system as a whole should be. What do we want it to do in the future? Should it be reconfigured from the ground up?

While change is needed, it is by no means clear what form it should take. At the root of the reform conversation are our worldviews, ethics and assumptions about what the system should be aiming for, and how we diagnose and articulate problems. Different worldviews, including te ao Māori, can give quite different answers to what the issues are and therefore what solutions are optimal.

This normative challenge is not just about drafting a set of principles in legislation – for example, revisiting the idea of sustainable management or sustainable utilisation – it is also about the much more specific objectives we should (or should not) set as a society (do we prohibit particular activities, or transition away from entire industries?), and the framework we establish to guide a pathway towards change in a way that is fair and just for both people and nature. Gone are the days where we can be content to just “manage” things in a static way.

A reformed system needs to be strategic and both drive and pre-empt the process of change. Change – in its environmental, climatic and social manifestations – is upon us whether we like it or not. We cannot afford

to treat different things as management silos. The environment is connected, and so too must be the system that controls human interactions with it.

There are key questions about how we get to a new future. To some, the status quo may be broadly appropriate, and what we need to do is focus on using what we have better. Outlaying huge amounts of time, money and resources on overhauling the system requires a sound justification. We need to avoid “shuffling deck chairs on the Titanic” or, as Sir Geoffrey Palmer reminds us, pursuing legislative change to show *something* is being done in the halls of power.²³ Change needs to be meaningful, but that does not necessarily mean systemic overhaul is the best way to achieve it.

The purpose of this working paper is to stimulate debate, and encourage a conversation about our oceans management system and the extent of reform needed. We pose a number of questions throughout and are seeking readers’ feedback and ideas. We also flag areas that are yet to be explored, and welcome perspectives on those as well.

In our final report we will be drawing various threads together to consider three or four overall models for what a future system *could* look like. These are intended to be tangible starting points, based on different configurations of building blocks, not a finite list of options to be accepted or rejected wholesale. We are not yet at a point where firm recommendations can be made – we first require a conversation.

Please contact us with your feedback, thoughts and comments at greg@eds.org.nz or raewyn@eds.org.nz.

Tahunanau Beach





List of key questions

Chapter 3: The existing oceans management system

- What other statutory frameworks are important for how our oceans are managed?
- What other elements of reform and social/political context will be important as part of the background against which oceans reform takes place?

Chapter 4: Norms

- Is it possible to have a purely objective assessment of problems? Which of the problems identified in Chapters 2 and 3 are there likely to be consensus about?
- Is it morally right for our objectives for a future system to be driven by the desire to create ecosystem services that benefit people? Are there situations in which that would be right, and others in which it would be wrong (for example, in the retention or removal of mangroves)?
- What would an equitable distribution of resource use rights look like in a future system?
- Would an answer be different if we considered what fairness to *nature* would look like?
- Is it appropriate for “planning”, rather than the market, to play a greater role in determining what the future uses of our marine space should be than on land?

We note also that there are a number of other questions posed in Chapter 4 that should be read within the context of the chapter’s discussion on various principles.

Chapter 5: Reconsidering the toolkit

- What implications does a new purpose for the proposed NBA (“te oraanga o te taiao”), and a more focused purpose for the setting of environmental limits (including ecological integrity) have for the marine environment?
- Should environmental limits and targets under the NBA be used as a mechanism to progress spatial protections (eg marine protected areas) and targets

for marine species to complement conservation legislation?

- What additional national direction could be promulgated under the RMA to improve marine outcomes?
- Should national direction under the NBA be expanded to address the environmental impacts of fishing?
- Under what circumstances should powers under the RMA/NBA be transferred to Māori?
- Should the use of tendering or other competitive processes for allocating rights in the marine area be mandatory, or more direction provided as to when they should be used?
- Should there be attempts to revive the concept of aquaculture management areas in a more nuanced manner (eg to implement broader marine spatial planning processes)?
- Should occupation rights for aquaculture relate, not to a particular space, but rather to a biomass that can be shifted to different areas?
- Should there be a compulsory charge for coastal occupation under the RMA/NBA, or clearer direction as to when/what such charges should be imposed for different uses?
- Should the RMA/NBA contain new, more directive types of tools where an environmental limit is threatened, like an “emergency” marine conservation order? Should such things be temporary?
- Could iwi be empowered to use such tools in a way that reflects traditional uses of rāhui?
- Should an EEZ policy statement be developed? What should it contain? Should it be made mandatory (like the NZCPS under the RMA)?
- Should the te Tiriti clause in the EEZ Act be amended to be more consistent with the Conservation Act and proposed NBA?
- Should there be a mandatory, comprehensive set of firm environmental limits required under the Fisheries Act as under the NBA, rather than just a

toolbox of measures to be deployed in a selective or discretionary manner? If so, what should be included in them?

- Should there be a national fisheries environment strategy, outlining a strategic plan for how sustainability measures would be rolled out to meet environmental limits?
- Should fisheries plans and permits operate in a manner more similar to the RMA/NBA, where a “consent to fish” and conditions are linked to the environmental policies and objectives of a plan?
- Should there be a requirement for fisheries plans to be place-based, to complement mandatory regional coastal plans under the RMA?
- Should the Harvest Strategy Standard or something like it be formalised as part of the decision-making system?
- How could a future system strengthen an ecosystems-based approach to stock assessments and catch limits? Would changing approaches to research funding make a difference?
- Should the QMS be unwound entirely and replaced with a non-market-based system (eg permitting)?
- Should there be some buy back of quota, and the establishment of a public quota holder to lease out rights based on a broader range of social and environmental factors?
- Should Fisheries Act tools like the TAC be “hijacked” by other frameworks with quite different purposes, such as for marine protected areas (zero take) or areas in which pressures on habitats for broader biodiversity reasons need be reduced (eg under the RMA/NBA)?
- Could more effective cross-referencing between existing frameworks ensure that their tools are deployed in a more coordinated and strategic manner?
- Could an expanded NZCPS perform a more integrative role, by being deemed to be an EEZ policy statement and/or a fisheries strategy?
- Should the purpose and principles of existing legislation be amended to provide for cross-cutting (and identically defined) principles like “ecosystems-based management”, “mana”, or “oranga”?
- Should marine spatial plans be strategic only, or should they be able to have direct regulatory effect? If the latter, should they be an alternative to other frameworks like the RMA or marine protected area legislation, or a replacement for them?
- If we were to adopt spatial planning, should marine spatial plans be rolled out across the country, or created as the need arises?

- Should marine spatial planning and spatial planning on land be done separately, or through the same (or connected) processes?
- Should an overarching Oceans Policy be developed in Aotearoa New Zealand to set high level goals and outline a vision for the future?
- Should an Oceans Policy be a manifesto for reform (with an end point) or a living instrument with ongoing application to how decisions are made under other frameworks?
- Is an Oceans Policy worth doing if it lacks direct effect or influence on other regulatory or funding frameworks having their own more targeted purposes and processes?
- Should marine spatial plans and an oceans policy be statutory tools? If so, would this require a separate statute to be created to overlay existing ones, or could an existing framework be used?
- To what extent should the legal framing for marine spatial planning be prescriptive, or flexible?

Chapter 6: Legislative design

- Should we combine the Crown Minerals Act with the Continental Shelf Act?
- Should the RMA and the EEZ Act be combined into one single, enlarged act (an expanded NBA)?
- Should the Marine Mammals Protection Act be folded into the broader framing of an updated Wildlife Act?
- Should a combined RMA/EEZ Act also subsume proposed legislation for marine protected areas (or an updated version of the Marine Reserves Act)?
- Should the boundary between the RMA and the EEZ Act be shifted, so that the former focused more on the coastal environment (eg out to three nautical miles or some other boundary) and the latter focused on the oceanic environment less impacted by land-based activities?
- Should we create an integrated piece of conservation legislation across land and sea, subsuming marine focused legislation like the Marine Reserves Act and Marine Mammals Protection Act?
- Should more of the environmental components of the Maritime Transport Act be shifted to the EEZ Act?
- Should area-specific conservation legislation be integrated into broader frameworks (eg marine protected area legislation) if those broader frameworks were made more fit for purpose and allowed for regional arrangements?
- Should we continue to create bespoke statutes for individual marine protected areas?

- Should responsibility for the impacts of fishing on biodiversity and the environment (other than fish stocks themselves) be more firmly shifted away from the Fisheries Act and into the RMA/NBA?
- Should the sustainability measures contained in the Fisheries Act be transferred into the RMA/NBA?
- Do the potential advantages of shifting catch limits and other stock management tools from the Fisheries Act to the RMA/NBA outweigh the potential disadvantages?
- Should the Strategic Planning Act be expanded to apply to the EEZ and what should its relationship with the EEZ Act (and instruments under it) be?
- Should the Strategic Planning Act be expanded to include fisheries considerations? If so, should a spatial plan influence decisions under the Fisheries Act, or should decisions under the Fisheries Act shape the spatial plan?
- Should a more integrated Oceans Act be created? If that were to happen, what existing statutes (or parts of them) should be subsumed?
- Would the potential benefits of integrating marine matters be outweighed by the downsides of fragmenting other systems (eg the catchment-sea interface, the movement of species across domains, biosecurity, the transport system)?

Chapter 7: Institutional design and international approaches to oceans governance

- Should central government take a stronger role in the development of national direction under the RMA for the coastal marine area, by (for example) creating regulations that give effect to the NZCPS?
- Should the environmental impacts of fishing activity – or fishing management itself – be shared between central government (Fisheries NZ) and regional councils? What implications does that have for the resourcing and capabilities of councils in future?
- Should there be a transfer of decision-making power to mana whenua with respect to fisheries, coastal occupation and customary use, and on what basis/ for what things?
- Should there be higher level co-governance put in place with respect to decisions (Māori and Crown), or should partnership occur at a regional level (iwi/ hapū and council)?
- Should the functions of regional councils beyond a certain line (eg mean high water springs or three nautical miles from land) be transferred to a central agency (perhaps with regional branches) such as the EPA or a new Oceans Agency?
- What is the proper role of a centralised body like the EPA when it comes to marine management? Should it have a clearer mandate?
- Should three water services (including wastewater and stormwater, with significant impacts on the marine environment) continue to be managed by territorial authorities and council-controlled organisations, or should there be greater centralisation?
- How much central involvement should there be in the development of marine spatial plans? Are they to be driven by communities, or national level concerns, and in what measure?
- To what extent should fisheries management be devolved to quota holders and operators (eg through industry-led fisheries plans), and does there need to be more clarity around when that is acceptable?
- Should we establish an independent Oceans Commission to act as a watchdog and hold government to account, or as an expert appeal body for some marine management decisions?
- If we were to establish a Tikanga Commission at a national level, should this be an independent expert entity focused on mātauranga at a general level, or one that is representative of iwi and hapū and reflective of different versions of tikanga across different rohe moana?
- Should there be an independent or arm's length Oceans Agency (potentially an expanded and strengthened EPA) to take on some regulatory decision-making (eg consents, sustainability measures) instead of accountable institutions like councils and ministers?
- Should the Environment Court have a role in reviewing decisions made under the Fisheries Act?
- Should central government be arranged as it is now (with marine matters fragmented across different departments and agencies), or should there be greater integration with the marine area as the focus (eg an Oceans Ministry)? Is an Oceans Secretariat and Minister for Oceans and Fisheries going to be enough to align the activities of those institutions?
- Should our institutions (eg regional councils and the Department of Conservation) continue to span land and sea, or should a regulator be more focused on oceans? What implications does that have for where a jurisdictional boundary is drawn, or are more complex overlapping jurisdictions required?
- If we were to have an integrated Oceans Ministry, what should its mandate be?
- Should there be formal statutory establishment of key institutions (eg if we were to have an Oceans Ministry)?
- What should the mandate of the EPA be in the marine space?

- Should decision-making power lie with more independent or arm's length institutions like an Oceans Agency or EPA (or Environment Court), or lie with institutions that are accountable to voters (Ministers and councils)?
- Do sufficient independent checks and balances exist to hold accountable institutions to account?
- Should there be an independent Oceans Commission and Tikanga Commission, or an expanded role for the Parliamentary Commissioner for the Environment, to ensure that ministers and councils are performing their roles as intended? What should the extent of their power be (eg the ability to enforce duties in the courts)?

ENDNOTES

- 1 See Environmental Defence Society "RM Reform Project" (14 October 2020) <www.eds.org.nz/our-work/rm-reform-project/>.
- 2 Te ao Māori refers to the Māori world view: see Hirini Moko Mead *Tikanga Māori: Living by Māori values* (revised edition, Huia Publishers, Wellington, 2016).
- 3 Te Tiriti o Waitangi refers to the Treaty of Waitangi as set out in English and in Māori in Schedule 1 of the Treaty of Waitangi Act 1975.
- 4 See Ministry for the Environment "Overview of the Resource Management Reforms" (June 2021) at <www.environment.govt.nz/what-government-is-doing/key-initiatives/resource-management-system-reform/overview/>.
- 5 See Minister for Oceans and Fisheries *Oceans and Fisheries portfolio – ensuring healthy ecosystems* (2 July 2021); Minister for Oceans and Fisheries *Fisheries system reform agenda* (2 July 2021); Minister for Oceans and Fisheries *Fisheries Amendment Bill: Strengthening fishing rules and policies: landings and discards* (2 July 2021); Minister for Oceans and Fisheries *Fisheries Amendment Bill: Strengthening fishing rules and policies: offences and penalties and agile decision-making* (2 July 2021); Minister for Oceans and Fisheries *Revitalising the Hauraki Gulf – Government Sea Change Strategy* (2 July 2021); Minister for Oceans and Fisheries *Initial response to Prime Minister's Chief Science Advisor's report on commercial fishing* (2 July 2021); and Minister for Oceans and Fisheries *On-board cameras across the inshore fishing fleet* (2 July 2021).
- 6 Questions posed in green boxes throughout the working paper have been compiled into Appendix 6 for ease of access.
- 7 See for example, Office of the Prime Minister's Chief Science Advisor *The Future of Commercial Fishing in Aotearoa New Zealand* (February 2021).
- 8 Temporary closure.
- 9 Currently the Natural and Built Environments Bill, which has had the front-end provisions released as part of an exposure draft and into which the Environment Select Committee is conducting an inquiry.
- 10 See *Natural and Built Environments Bill* (Exposure Draft, 2021), cl 5; Ministry for the Environment *Natural and Built Environments Bill Parliamentary Paper on the Exposure Draft* (June, 2021), [93]–[99] at <www.environment.govt.nz/publications/natural-and-built-environments-bill-parliamentary-paper-on-the-exposure-draft/>.
- 11 Compare Office of the Prime Minister's Chief Science Advisor *The Future of Commercial Fishing in Aotearoa New Zealand* (February 2021).
- 12 See Minister for Oceans and Fisheries *Oceans and Fisheries portfolio – ensuring healthy ocean ecosystems* (2 July 2021).
- 13 EDS is considering options for conservation law as a "system" in its own right in a separate project, and we have previously touched upon what integrated conservation law could look like in our resource management reform project. See Deidre Koolen-Bourke and Raewyn Peart *Conserving Nature: Conservation System Reform Issues Paper* (EDS, Auckland, 2021). This will be followed by Phase 2 looking at options. See also Greg Severinsen *Reform of the Resource Management System: A model for the future. Synthesis report* (EDS, Auckland, 2019).
- 14 *Attorney-General v The Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532.
- 15 *Attorney-General v The Trustees of the Motiti Rohe Moana Trust & ors* [2019] NZCA 532.
- 16 Claire Charters and others *He Puapua: Report of the Working Group on a Plan to Realise the UN Declaration on the Rights of Indigenous Peoples in Aotearoa New Zealand* (Te Puni Kōkiri, 1 November 2019).
- 17 See Sustainable Seas "Tangaroa" Sustainable Seas National Science Challenge <www.sustainableseaschallenge.co.nz/our-research/tangaroa>.
- 18 Office of the Prime Minister's Chief Science Advisor *The Future of Commercial Fishing in Aotearoa New Zealand* (February 2021) at 2.
- 19 At 2.
- 20 *Royal Forest and Bird Protection Society v Minister of Fisheries* [2021] NZHC 1427.
- 21 See for example, Environmental Protection Authority "Partnership in action: The EPA's Mātauranga framework" (June 2020) <www.epa.govt.nz/assets/Uploads/Documents/Te-Hautu/Matauranga-Maori-Report_Framework-Report.pdf>.
- 22 Parliamentary Commissioner for the Environment *A review of the funding and prioritisation of environmental research in New Zealand* (December 2020).
- 23 Sir Geoffrey Palmer "Law-making in New Zealand: Is there a better way?" (2014) 22 Waikato Law Review.